

22STCV41098 22STCV41098

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 22STCV41098 Hearing Date: August 7, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:15 PM on August 6, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 6, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges

that a grant deed was forged conveying Plaintiff's properties, which was then encumbered, all without Plaintiff's authorization. Plaintiff brings a quiet title action.

Defendant Ross Tarkhan moves to quash the deposition subpoena

for production of bank and business records served upon JPMorgan Chase Bank, N.A.
by Plaintiff Wilshire Quinn Income Fund Reit, LLC.

TENTATIVE RULING

The motion to quash the subpoenas as to the JPMorgan
Chase Bank, N.A. account ending in 5670 is DENIED.

No sanctions were requested.

ANALYSIS

Motion To Quash Deposition Subpoena

Discussion

The Court has
reviewed the moving and opposing briefs filed by the parties (but has not yet received
a reply brief as of 12:00 p.m. on August 6, 2026). The Court only addresses the points which the Court deems to be
material to the disposition of this motion.

Defendant

Ross Tarkhan moves to quash the deposition subpoena for production of bank and business
records served upon JPMorgan Chase Bank, N.A. by Plaintiff Wilshire Quinn Income
Fund Reit, LLC. The subpoena requested the following documents:

1. The "SUBJECT ACCOUNT" refers to the
JPMorgan Chase Bank, N.A. account ending in 5670, to which funds were transferred
from JPMorgan Chase Bank, N.A. Account No. 000000807818353 in November and December
2022, including the following transfers: (1) on or about November 3,
2022, in the amount of \$27,000; (2) on or about November 7, 2022, in the amount
of \$62,000; (3) on or about November 8, 2022, in the amount of \$200,000; (4) on
or about November 10, 2022, in the amount of \$35,000; (5) on or about November 14,
2022, in the amount of \$268,000; (6) on or about November 15, 2022, in the amount
of \$272,000; (7) on or about November 18, 2022, in the amount of \$95,000; (8) on
or about November 18, 2022, in the amount of \$91,000; (9) on or about November 23,
2022, in the amount of \$241,000; (10) on or about November 25, 2022, in the amount
of \$245,000; (11) on or about November 29, 2022, in the amount of \$85,000; and (12)
on or about December 1, 2022, in the amount of \$40,000

REQUESTS

FOR PRODUCTION OF DOCUMENTS

1. All monthly account statements for the SUBJECT ACCOUNT.

2. All DOCUMENTS reflecting or otherwise RELATED TO any deposits made to the SUBJECT ACCOUNT, including but not limited to DOCUMENTS reflecting the date of deposit, amount deposited, location of deposit, source of deposit, method of deposit, and any other information RELATED TO the deposit.

3. All DOCUMENTS reflecting or otherwise RELATED TO any withdrawal from the SUBJECT ACCOUNT, including but not limited to DOCUMENTS reflecting the date of withdrawal, amount withdrawn, location of withdrawal, method of withdrawal, and any other information RELATED TO the withdrawal.

4. All DOCUMENTS reflecting or otherwise RELATED TO any ACH, wire, or other transfers into or out of the SUBJECT ACCOUNT, including but not limited to DOCUMENTS identifying the owner or other identifying information of the senders or recipients of the funds.

5. All DOCUMENTS RELATED TO the opening of the SUBJECT ACCOUNT,

including but not limited to account opening forms, agreements, or other records showing the establishment of the SUBJECT ACCOUNT.

6. All DOCUMENTS reflecting or otherwise RELATED TO the PERSONS with

signature authority for the SUBJECT ACCOUNT, including but not limited to signature cards, authorizations, resolutions, or other records identifying authorized signers.

7. ALL DOCUMENTS reflecting or otherwise RELATED TO any alerts or

notifications REGARDING the SUBJECT ACCOUNT, including but not limited to automated system-generated alerts, security alerts, fraud alerts, or any other alerts RELATED TO activities or transactions in the SUBJECT ACCOUNT.

8. All DOCUMENTS reflecting or otherwise

RELATED TO bank records, signature cards, checks (both sides), wire transfers, book transfers, or deposit slips, memorializing transactions and/or transfers of funds into or out of the SUBJECT ACCOUNT.

9. All COMMUNICATIONS, including but

not limited to letters, emails, or any other correspondence involving or otherwise RELATED TO the SUBJECT ACCOUNT.

Defendant Tarkhan argues that the subpoena

should be quashed because the requests are overly broad, seek highly sensitive information and invade the right to privacy. Defendant argues that Plaintiff has failed to demonstrate a particularized need for the information.

Plaintiff argues

that Defendant Tarkhan fails to demonstrate that the records pertain to him. However, Civ. Proc. Code, 1987.1.(b)(1) expressly grants a party standing to make a motion to quash pursuant to § 1987.1.

Civ. Proc. Code,

1987.1(a) provides:

(a) If a subpoena

requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

(Code Civ. Proc.,

§ 1987.1(a)[bold emphasis added].)

There is no

meet and confer requirement set forth in Civ. Proc. Code, § 1987.1.

However, case law has imposed the “good cause” requirement for subpoena document requests propounded upon non-parties, that is, the propounding party must articulate specific facts relating to each category of materials sought to justify production:

In the course of the litigation, Thiem served a subpoena under section 2020 on Calcor’s custodian of records demanding Calcor, a nonparty and Thiem’s competitor, to, in effect, produce all materials in its possession relating to gun mounts, going back nearly 10 years. The subpoena fails to identify any specific document but merely describes broad categories of documents and other materials.

(Calcor Space Facility v. Superior Court (1997)
53 Cal.App.4th 216, 219.)

Although the scope of civil discovery is broad, it is not limitless. . . . [Former] Section 2031, subdivision (l), which applies to document production requests served on a party, requires a [*224] party seeking to compel such production to “set forth specific facts showing good cause justifying the discovery sought by the inspection demand” (Italics in original.) Section 2020, the statute at issue, contains no such specific requirement. However, since both sections are part of a single statutory scheme, and since it is unlikely the Legislature intended to place greater burdens on a nonparty than on a party to the litigation, we read a similar requirement into the latter section.

(Calcor Space Facility, *supra*, 53 Cal.App.4th at 223-24.)

Even were we to ignore that the statements purporting to justify an order compelling Calcor to produce its documents and other materials are unverified, they still fail. There is an absence of specific facts relating to each category of materials sought to be produced; the justifications offered for the production are mere generalities. The very vice of the subpoena’s promiscuity is well illustrated by Thiem’s inability to provide focused, fact-specific justifications for its demands. The noted generality of the subpoena’s definitions, instructions and categories which merely add up to a demand Calcor produce everything in its possession having anything to do with gun mounts, precludes Thiem from demonstrating any particular item or category in fact constitutes or contains matter which “is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible

evidence.” (§ 2017, subd. (a).) The purported justification for imposing this great burden on Calcor necessarily suffers from the same generality as the subpoena itself.

Although appellate courts have frequently stated “fishing expeditions” are permissible in discovery, there is a limit. As noted in *Gonzalez v. Superior Court* (1995) 33 Cal. App. 4th 1539 [39 Cal. Rptr. 2d 896], “These rules are applied liberally in favor of discovery (*Colonial Life & Accident Ins. Co. v. Superior Court* (1982) 31 Cal. 3d 785, 790), and (contrary to popular belief), fishing expeditions are permissible in some cases.” (Id. at p. 1546.) However, early in the development of our discovery law our Supreme Court recognized the limits on such “fishing expeditions.” In [*225] *Greyhound Corp. v. Superior Court* (1961) 56 Cal. 2d 355 [15 Cal. Rptr. 90, 364 P.2d 266], the seminal case in California civil discovery, the court gave examples of improper “fishing” “The method of ‘fishing’ may be, in a particular case, entirely improper (i.e., insufficient identification of the requested information to acquaint the other party with the nature of information desired, attempt to place the burden and cost of supplying information equally available to both solely upon the adversary, placing more burden upon the adversary than the value of the information warrants, etc.). Such improper methods of ‘fishing’ may be (and should be) controlled by the trial court under the powers granted to it by the statute.” (Id. at pp. 384-385.) The concerns for avoiding undue burdens on the “adversary” in the litigation expressed in *Greyhound* apply with even more weight to a nonparty.

Had the *Greyhound* court been able to anticipate the tremendous burdens promiscuous discovery has placed on litigants and nonparties alike, it might well have taken a stronger stand against such “fishing.” *Greyhound*’s optimism in noting the then new discovery system would be “simple, convenient and inexpensive,” would “expedite litigation,” and “expedite and facilitate both preparation and trial,” has certainly proven to have been considerably off the mark. (56 Cal. 2d at p. 376.)

The issues in this litigation may essentially be reduced to the question whether Thiem’s work met Delco’s specifications. This may be determined without any reference to the contract between Delco and Calcor or the specifications which are part of that contract. Another issue which may exist is whether Delco may recover the excess of the cost of the gun mounts procured from Calcor as damages for “cover” under California Uniform Commercial Code section 2712. (See *Gerwin v. Southeastern Cal. Assn. of Seventh Day Adventists* (1971) 14 Cal. App. 3d 209, 217-218 [92 Cal. Rptr. 111].) If so, differences in specifications issued to Thiem and to Calcor may be relevant. However, discovery by Thiem from Delco should normally provide it with this evidence. As between parties to litigation and nonparties, the burden of discovery

should be placed on the latter only if the former do not possess the material sought to be discovered. An exception to this may exist where a showing is made the material obtained from the party is unreliable and may be subject to impeachment by material in possession of the nonparty. Thiem has not even attempted to demonstrate why it cannot obtain the needed materials from Delco or why such materials might be unreliable.

(Calcor Space Facility, *supra*, 53 Cal.App.4th at 224-25 [bold emphasis and underlining added].)

Defendant asserts

his privacy interest in financial information.

The California Supreme Court has held that a compelling interest or compelling need is not always required in order to discover private information—the Court must consider the factors articulated in *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1 to determine the seriousness of the privacy invasion and the strength of the countervailing interest required to overcome that invasion. (*Williams v. Superior Court* (2017) 3 Cal.5th 531.)

In ruling upon a privacy objection in the context of discovery, the party asserting a privacy right must establish a legally protected privacy interest.

(*Williams*, *supra*, 3 Cal.5th at 552.) The

party asserting a privacy right must also establish an objectively reasonable expectation of privacy in the given circumstances. (*Id.*)

Further, the party asserting a privacy right must establish a threatened intrusion that is serious. (*Id.*) The Court need not proceed to the fourth step

of balancing competing interests if all three of the above are not satisfied. (*Id.* at 555.) If the Court reaches the fourth step, the Court must balance these competing considerations: The party seeking information may raise whatever legitimate and important countervailing interests disclosure serves. (*Id.* at 552.) The party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. (*Id.*) Courts may not require the party seeking discovery to demonstrate a “compelling state interest” or “compelling need” simply because discovery of any facially private information is sought. (*Id.* at 556-57.)

“Although corporations have a lesser

right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental [*1288] right, some right to privacy exists. Privacy rights accorded artificial entities are not stagnant, but depend on the circumstances.

United States v. Hubbard [(D.C. Cir. 1980)] 650 F.2d 293 [208 App.D.C. 399] speaks to this point: ‘However, we think one cannot draw a bright line at the corporate structure. The public attributes of corporations may indeed reduce pro tanto the reasonability of their expectation of privacy, but the nature and purposes of the

corporate entity and the nature of the interest sought to be protected will determine the question whether under given facts the corporation per se has a protectible privacy interest. . . .' (At pp. 306-307, fns. omitted; . . .) [P] It is clear to us that the law is developing in the direction that the strength of the privacy right being asserted by a nonhuman entity depends on the circumstances. Two critical factors are the strength of the nexus between the artificial entity and human beings and the context in which the controversy arises." (Roberts v. Gulf Oil Corp., supra, 147 Cal. App. 3d at pp. 796-797.)

(Ameri-Medical Corp. v. Workers' Comp. Appeals Bd. (1996) 42 Cal.App.4th 1260, 1287-88.)

In the Opposition, Plaintiff proffers the following as good cause for the requested documents:

Wilshire's subpoena seeks records for a Chase account ending in 5670. As set forth above, the records previously produced in this case show that, following funding of the subject loan, BHG received more than \$4.2 million from the fraudulently obtained proceeds, and transferred a total of \$1,661,000 to a Chase account ending in 5670. The records sought are therefore directly relevant and material to the subject loan and issues at the center of this action. The records are necessary for Wilshire to trace the movement of the fraudulently obtained proceeds, investigate the disposition of funds, and identify recipients of those funds. The related federal indictment likewise alleges that funds were transferred from BHG's Chase account ending in 8353 to account ending in 5670 as part of the movement of fraud proceeds.

The request is expressly limited to the twelve identified transfers into one JPMorgan Chase Bank, N.A. account ending in 5670 from one account from JPMorgan Chase Bank, N.A. Account No. 000000807818353 in November and December 2022. Plaintiff is entitled to all of the documents requested pertaining to the limited universe of documents in order to discovery information about tracing the movement of the allegedly fraudulently obtained proceeds and possible participants in the overall scheme.

Defendant Tarkhan

has not demonstrated that any implicated privacy interest—indeed Tarkhan is not identified in the document request—outweighs Defendant Wilshire Quinn Income Fund REIT, LLC's right to obtain the requested documents.

As such, the motion to quash the subpoenas as to the JPMorgan Chase Bank, N.A. account ending in 5670 is DENIED.

No sanctions were requested.